

25STCV29357 25STCV29357

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Case Number: 25STCV29357 Hearing Date: August 24, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: August 24, 2026

CASE NUMBER: 25STCV29357

CASE NAME: JOSE JESUS PEREZ, et al. vs STEVEN AMEZOLA, et al.

MOVING PARTY: Defendants Emily Mohr and
Jonathan Rieke

OPPOSING PARTY: Plaintiffs Jose Jesus Perez, Juan
Jose Perez, Angelica Rodriguez, Augustin Rodriguez, and Devine Rodriguez

PROCEEDING: Demurrer

RULING SUMMARY: Defendants Emily Mohr Jonathan Reike's
Demurrer is overruled as to the Third Cause of Action (Wrongful Eviction),
Sixth Cause of Action (Unfair Business Practices), and sustained as to the Seventh
Cause of Action (Trespass) and the Eighth Cause of Action (Elder Abuse), with
leave to amend.

Background

On

October 8, 2025, Plaintiffs Jose Jesus Perez ("Jose")[1],

Juan Jose Perez ("Juan"), Angelica Rodriguez ("Angelica")[2],

Augustin Rodriguez ("Augustin"), and Devine Rodriguez ("Devine" and

collectively “Plaintiffs”) filed their Complaint against Defendants Steven Amezola, as trustee and an individual (“Amezola”), Emily Mohr (“Mohr”), Pat Ownes (“Owens”), and Jonathan Reike (“Reike”).

The operative pleading is the First Amended Complaint (“FAC”) filed on January 5, 2026, by and against the same parties. The FAC alleges eight causes of action for: (1) Negligence against all defendants; (2) Tenant Harassment in Violation of the Los Angeles Tenant Anti-Harassment Ordinance against all defendants; (3) Wrongful Eviction against Mohr and Reike; (4) Breach of Contract against Amezola, Mohr, and Reike; (5) Nuisance; (6) Unfair Business Practices against Amezola, Mohr, and Reike; (7) Trespass against Amezola, Mohr, and Reike; and (8) Elder Abuse by Jose against Amezola, Mohr, and Reike.

Plaintiffs allege that they lived at 3666 Rolle Street, Los Angeles, California (the “Subject Property”) which was illegally subdivided into two separate units and protected under the City of Los Angeles’ Rent Stabilization Ordinance. Plaintiffs allege a pattern of habitability issues by both Amezola and Owens, the prior owners, and Mohr and Reike, current owners. Plaintiffs further allege unlawful eviction by Mohr and Reike.

On February 9, 2026, Mohr and Reike (“Moving Defendants”) filed this Demurrer. On February 23, 2026, Amezola filed his Answer to the FAC. On March 11, 2026, Pat Owen filed his Answer to the FAC. On April 6, 2026, Plaintiffs changed the incorrect name of Owens to Owen. On May 5, 2026, Plaintiffs filed their Opposition. On May 11, 2026, Moving Defendants filed their Reply.

Demurrer

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer with the party who filed the pleading demurred to, in person or telephonically, to determine whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. §§ 430.41,

435.5.) Alternatively, the moving party may file a declaration stating that the party who filed the pleading subject to the demurrer or motion to strike failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith. (Code Civ. Proc. §§ 430.41(a)(3)(B), 435.5(a)(3)(B).)

This requirement has been met. (See Decl. Susan Welde at ¶¶ 2-3.)

LEGAL STANDARD

A.

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

B.

Leave to Amend

“Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.” (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) “A trial court does not abuse its discretion when it sustains a demurrer without leave to amend if either (a) the facts and the nature of the claims are clear and no liability exists, or (b) it is probable from the nature of the defects and previous unsuccessful attempts to plead that the plaintiff cannot state a claim.” (*Cantu v. Resolution Trust Corp.* (1992) 4

Cal.App.4th 857, 889.)²² The burden is on the complainant to show the Court that a pleading can be amended successfully. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

REQUEST FOR JUDICIAL NOTICE

A.

Moving Defendants' Request for
Judicial Notice:

1.

Original Permit for Erection of a Building of
Class "D" File-Stamped by City of Los

Angeles

Department of Building and Safety dated March 20, 1933 attached hereto and

incorporated by
reference as Exhibit 1 – Granted.

2.

City of Los Angeles Department of Building and
Safety Permit Application dated

February 8, 1980

attached hereto and incorporated by reference as Exhibit 2 – Granted.

3.

The Los Angeles County Assessor's online
property records for the subject property, as accessible on February 9, 2026, a
true and correct copy of which is attached hereto and incorporated by reference
as Exhibit 3 – Granted.

4.

Los Angeles Housing Department 2025 Annual Bill
for Just Cause Ordinance Registration and receipt dated April 23, 2025 attached
hereto and incorporated by reference as Exhibit 4 – Granted.

5.

Declaration of Intent to Evict File-stamped by

Los Angeles Housing Department dated April 25, 2025 attached hereto and incorporated by reference as Exhibit 5 – Granted.

6.

Letter from Los Angeles Housing Department dated June 12, 2025 attached hereto and incorporated by reference as Exhibit 6 – Granted.

7.

60-Day Notice to Terminate Tenancy, Proof of Service dated April 25, 2025, and

Proof of Los Angeles Housing Department Notice of Termination Filing attached hereto and incorporated by reference as Exhibit 7 – Denied.

8.

Proof of Service dated May 8, 2025 for Notice of Termination Date; Notice of Relocation Assistance Payment; Notice of Rent Rejection; Notice of Ownership Change and Envelope Containing check of \$852.00 and (2) Checks being returned of \$426.00 each attached hereto and incorporated by reference as Exhibit 8 – Denied.

B.

Plaintiff's Request for Judicial Notice

1.

The MLS Listing advertising the Subject Property as a two-unit property dated September 24, 2024, which has been attached hereto as "Exhibit A" – Denied.

DISCUSSION

As an initial matter, the Demurrer includes argument as to the Second Cause of Action (Tenant Harassment in Violation of the Los Angeles Tenant Anti-Harassment Ordinance), but the Demurrer does not include this cause of action in the notice. (See Demurrer at pp. 1-3 and compare with 9:6-7.) Therefore, the Court makes no ruling as to the Second Cause of Action.

A.

Third Cause of Action (Wrongful
Eviction) and Derivative Claims

Moving

Defendants argue that the Third Cause of Action (Wrongful Eviction) fails as the Subject Property has been classified as a single-family property and is, therefore, governed by the Just Cause for Eviction Ordinance (“JCO”), not by the rent stabilization ordinance (“RSO”). Defendants contend, therefore, that Plaintiffs cannot state a cause of action for wrongful eviction under the RSO.

Plaintiffs’

claim of wrongful eviction is based on the following allegations:

.
The Subject Property is a single-family home that the owners illegally subdivided into two separate residential units, rented, and occupied by the Plaintiffs. The Subject Property was built in 1937 and is thus protected by the rent ceiling limitations and eviction protections of the City of Los Angeles Rent Stabilization Ordinance (“RSO”). (FAC at ¶ 1.)

.
The Third Cause of Action (Wrongful Eviction) is based on Section 151.09 of the Los Angeles Rent Stabilization Ordinance.

While the documents of which Moving

Defendants ask this Court to take judicial notice show that a public entity saw the Subject Property as a single-family unit, the Demurrer papers do not address whether the allegation that they illegally operated the Subject Property as two units, which must be taken as true for the purpose of a demurrer, affects the application of RSO.

Moving Defendants also argue that

the Subject Property is seen as one unit due to the FAC’s use of the term “home” and “property,” citing to the FAC (which they erroneously refer to as the Complaint) at paragraphs 20 and 130. The use of the word “home” and “property” provides no insight as to whether the Subject Property operated legally as a single-family home or illegally as a two-unit residence.

In “ [t]aking judicial notice of

a document” the Court “ is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning.’ ...While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein. ... ‘When judicial notice is taken of a document, ... the truthfulness and proper interpretation of the document are disputable.’” (Herrera v. Deutsche Bank Nat. Trust Co. (2011) 196 Cal.App.4th 1366, 1375.)

Whether the Subject Property’s designation as a single-family home or must, for purposes of the claims in this case, be treated as a two-unit residence is subject to dispute, and the Court cannot resolve such factual disputes in the context of a demurrer. (See Fremont Indemnity Co. v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 114–115; see also Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 605 “[t]he hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of ... material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff”.)

Accordingly, the Demurrer to the Third Cause of Action (Wrongful Eviction) is overruled.

B.
Sixth Cause of Action (Unfair Business Practices)

Moving Defendants argue that the FAC fails to allege specific facts related to them. Specifically, Moving Defendants contend that this claim is duplicative of wrongful eviction and the only issue pled is the failure to adhere to eviction requirements under the RSO. Moving Defendants further argue that Plaintiffs cannot rely on unsupported claims, including but not limited to, under the RSO, that the Subject Property was the subject of non-specified statutes due to its condition at purchase, and the timing of eviction was one month later in April 2025.

Plaintiffs assert that a claim for unfair business practices involves proving that a defendant engaged in a practice, committed pursuant to business activity, that is at the same time forbidden by law, which means any law. Plaintiffs direct the parties and the

Court to their allegations that Moving Defendants were landlords, that they failed to provide a habitable property in violation of local and state laws, and, as such, causes damages to Plaintiffs. Plaintiffs further argue that statutory remedies are not exclusive.

In Reply, Moving Defendants

contend that Plaintiffs fail to establish how alleged habitability concerns constitute an independent unlawful business practice.

Business &

Professions Code section 17200 permits recovery for “any unlawful, unfair, or fraudulent business act or practice.”² To successfully plead a UCL claim for unfair business practices, a plaintiff must allege facts justifying relief in the form of protecting the public from unfair business practices or deceptive advertising. (Day v. AT&T Corp. (1998) 63 Cal.App.4th 325, 331-332.) A plaintiff must plead and prove that the defendant engaged in a business practice that was either unlawful (i.e., is forbidden by law) or unfair (i.e., harm to victim outweighs any benefit) or fraudulent (i.e., is likely to deceive members of the public).³ (Albillo v. Intermodal Container Services, Inc. (2003) 114 Cal.App.4th 190, 206.)⁴

Pursuant to section

17204, a private party must have “suffered injury in fact and . . . lost money or property as a result of the unfair competition” to pursue a claim. “To satisfy the narrower standing requirements imposed by Proposition 64, a party must now (1) establish a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., economic injury, and (2) show that that economic injury was the result of, i.e., caused by, the unfair business practice or false advertising that is the gravamen of the claim.” (Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322.) “There are innumerable ways in which economic injury from unfair competition may be shown. A plaintiff may (1) surrender in a transaction more, or acquire in a transaction less, than he or she otherwise would have; (2) have a present or future property interest diminished; (3) be deprived of money or property to which he or she has a cognizable claim; or (4) be required to enter into a transaction, costing money or property, that would otherwise have been unnecessary.” (Id. at 323.)

Here, the FAC separates the allegations by the owners of the Subject Property in time (i.e. First Owner Defendants and Second Owner

Defendants). It is clear which allegations are directed at Moving Defendants. (FAC ¶¶ 106-10.) As such, it is alleged that Moving Defendants are in the business of being landlords and managing property, that they engaged in unlawful and unfair business practices by refusing to provide habitable conditions, collecting rent from an unpermitted apartment, and wrongfully evicting Plaintiffs which led to damages.

1. Unfair

"In consumer cases, the [California] Supreme Court has not established a definitive test to determine whether a business practice is unfair. [Citations.]" (Drum v. San Fernando Valley Bar Assn. (2010) 182 Cal.App.4th 247, 256.) There are three types of tests for unfairness in consumer cases: (1) "that the public policy which is a predicate to a consumer unfair competition action under the 'unfair' prong of the UCL must be tethered to specific constitutional, statutory, or regulatory provisions[;]" (2) "whether the alleged business practice 'is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers and requires the court to weigh the utility of the defendant's conduct against the gravity of the harm to the alleged victim[;]' " and (3) a three-part test that requires the consumer injury be substantial, that the injury must not be outweighed by any countervailing benefits to consumers or competition, and the injury must be an injury that consumers themselves could not reasonably have avoided. (Id. at 256-57.)

It appears that, as alleged, Plaintiffs have satisfied the first and second prongs as (1) the basis of the claim is both habitability based on state and local laws as alleged in paragraph 40 of the FAC and eviction as alleged in paragraph 21 in the FAC.

C.

Seventh Cause of Action (Trespass)

Moving Defendants argue that the claim for trespass fails as the eviction was lawful and authorized, and Plaintiffs admit that Defendants recovered possession of the Subject Property and entered into the unit "after" recovering possession of the unit.

Plaintiffs argue that Moving

Defendants cannot claim that the Plaintiffs voluntarily left the Subject Property while also stating that they evicted the Plaintiffs from their tenancy; in other words, the wrongful eviction constitutes trespass.

Moving Defendants, in Reply, argue

that Plaintiffs fail to allege facts establishing that Defendants exceeded any lawful right of entry or otherwise entered the property without legal authorization as Plaintiffs vacated the property in compliance with the noticed termination date and that the Subject Property was subject to the Just Cause Ordinance and not the RSO.

“ ‘Trespass is an unlawful interference with possession of property.’ The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (See CACI No. 2000.)” (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 261-62.)

As Defendants point out,

Plaintiffs do not allege that they were in possession of the Subject Property or had control as they concede that they were evicted at the time of the alleged trespass. Without control over the property, Plaintiffs cannot bring a claim for trespass.

Therefore, the demurrer is

sustained as to the Seventh Cause of Action with leave to amend.

D.

Eighth Cause of Action (Elder Abuse)

Moving Defendants argue that Plaintiffs'

use of the same facts regarding habitability conditions and unlawful evictions do not meet the requirements of elder abuse. Specifically, Moving Defendants assert that, to the extent the taking is alleged to be the eviction, the eviction was not wrongful as it was authorized by the County of Los Angeles. To address any alternative basis of the claim, Moving Defendants argue that failure to

maintain the Subject Property or respond to Plaintiffs' complaints does not constitute taking for an elder abuse claim.

Plaintiffs argue that any deprivation of property right is considered a taking under California case law and, as Jose was wrongfully evicted, the alleged facts are sufficient to constitute a claim for elder abuse.

Moving Defendants' Reply argument focuses on one of the cases cited by Plaintiffs, *Cameron v. Las Orchidias Properties, LLC* (2022) 82 Cal.App.5th 481 ("Cameron"). Moving Defendants distinguish their alleged actions from Cameron by stating that "Defendants have consistently expressed their intent to occupy the property as a personal residence and permanently remove the property from the rental market as evidenced by the Declaration of Intent to Evict," citing to the Request to Judicial Notice at Exhibit 5.

The Court has discussed the issues with the judicially noticed documents above.

"Abuse of an elder or a dependent adult" is defined as "[f]inancial abuse as defined in Section 15610.30." (Wel. & Inst. Code §15610.07.)

The FAC identifies Welfare & Institutions Code section 15610.30 (FAC ¶ 130), which provides:

(a) "Financial abuse" of an elder or dependent adult occurs when a person or entity does any of the following:

(1) Takes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(2) Assists in taking, secreting, appropriating, obtaining, or retaining real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both.

(3) Takes, secretes, appropriates, obtains, or retains, or assists in taking, secreting, appropriating, obtaining, or retaining, real or

personal property of an elder or dependent adult by undue influence, as defined in Section 15610.70.

(b) A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult.

(c) For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult.

(d) For purposes of this section, "representative" means a person or entity that is either of the following:

(1) A conservator, trustee, or other representative of the estate of an elder or dependent adult.

(2) An attorney-in-fact of an elder or dependent adult who acts within the authority of the power of attorney.

Neither party addresses whether this section contains protection or even addresses evictions at all.

Cameron holds that " 'property' as used in the Elder Abuse Act includes a displaced tenant's right to re-rent under the Los Angeles Municipal Code and the Ellis Act." (Cameron, *supra*, 82 Cal.App.5th at 509.) The Cameron Court noted that, in the case of an elder who lived in her apartment for 52 years before she was divested of possession on the basis of the intent of withdrawing the units from rental use under the Ellis Act, where eviction turned out to be unwarranted, then the right to possession matures, at the latest, when the property is again offered for rent.

No facts are alleged that Moving

Defendants have put the Subject Property back on the market for rent and the eviction in the context of this case and the elder abuse statutes are not addressed.

Plaintiffs other cited case, Bounds

v. Superior Court (2014) 229 Cal.App.4th 468, focuses on a core dispute as to whether Bounds's alleged execution of the escrow instructions is sufficient to plead a taking of the real property and does not address eviction.

The Court sustains the demurrer to the Eighth Cause of Action with leave to amend.

Conclusion

Defendants

Emily Mohr Jonathan Reike's Demurrer is overruled as to the Third Cause of Action (Wrongful Eviction) and Sixth Cause of Action (Unfair Business Practices); and sustained as to the Seventh Cause of Action and Eighth Cause of Action (Elder Abuse) with leave to amend

Date: 08/24/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court

[1]

Plaintiffs Jose Jesus Perez and Juan Jose Perez share the same surname. The Court addresses each individually by their respective first name for the purpose of clarity. No disrespect is intended.

[2]

Plaintiffs Angelica Rodriguez, Augustin Rodriguez, and Devine Rodriguez share the same surname. The Court addresses each individually by their respective first name for the purpose of clarity. No disrespect is intended.